

25CMCV00451 25CMCV00451

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-27

Motion: DEFENDANT'S MOTION FOR SUMMARY JUDGMENT DATE: August 27, 2026 TIME: 8:30 A.M.

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Case Number: 25CMCV00451 Hearing Date: August 27, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

GIOVANNA
WILKERSON,

Plaintiff,

vs.

PAUL UGBOGBO, DORIS
OGUNTOWO, DORIS COUNCIL,

Defendants.

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CASE

NO: 25CMCV00451

[TENTATIVE] ORDER RE: DEFENDANT'S MOTION
FOR SUMMARY JUDGMENT

DATE: August 27, 2026

TIME: 8:30 A.M.

DEPT.:

E

Moving Party: Defendants

Paul Ugbogbo and Doris Oguntowo (aka Doris Council)

Responding Party: Plaintiff

Giovanna Wilkerson

Notice: Ok

Tentative Ruling: Defendant's Motion for Summary Judgment is CONTINUED to
October 28, 2026 at 8:30 a.m. in Dept. E.

I.

BACKGROUND

This is a

habitability action. Plaintiff Giovanna

Wilkerson alleges that she rented a condominium from Defendant Paul Ugbogbo

("Ugbobo"). Plaintiff alleges Defendants overcharged for rent and failed to maintain the habitability of the rental property.

On March 19, 2025, Plaintiff filed her operative Complaint against Ugbobo, Doris Oguntowo, and Doris Council (collectively, the "Defendants"), alleging several habitability issues with the property.

On April 24, 2026, Defendants filed the instant Motion for Summary Judgment.

On August 14, 2026, Plaintiff filed her Response.

On August 20, 2026, Defendants filed their Reply.^[1]

II. ANALYSIS

A. Legal Standard

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing

that a cause of action has no merit if the party has shown that one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 437c(p)(2).) "Once the defendant ... has met that burden, the burden shifts to the plaintiff ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Ibid.) "If the plaintiff cannot do so, summary judgment should be granted." (Avivi v. Centro Medico Urgente Med. Ctr. (2008) 159 Cal.App.4th 463, 467.)

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (Avivi, supra, 159 Cal.App.4th at p. 467; see also Code Civ. Proc. § 437c(c).)

B.

Discussion

Defendants move for summary judgment on the ground that Plaintiff's deemed admissions eliminate all essential elements of Plaintiff's causes of action and establish complete defenses to her claims.

1.

Procedural Deficiencies

The Court notes that Plaintiff's Response is procedurally deficient. An opposition to a motion for summary judgment "shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion." (Code Civ. Proc. § 437c(b)(3); see also Cal. R. Ct., Rule 3.1350 (Setting forth the requirements for documents presented in opposition to a motion for summary judgment).)

Plaintiff's Reply, in the form of a declaration, does not comply with the Code of Civil Procedure or the Rules of Court.

"[T]echnical compliance with the procedures of CCP § 437c is required to ensure that there is no infringement of a litigant's hallowed right to have a dispute settled by a jury of his or her peers." (Bahl v. Bank of America (2001) 89 Cal.App.4th 389, 395.) Although it is within the Court's discretion to grant Defendants' motion for summary judgment given Plaintiff's failure to abide by the Rules of Court and the Code of Civil Procedure, here the Court determines that a continuance to allow the opposing party to properly present an opposing separate statement is warranted; while Plaintiff's declaration submitted in opposition may have evidentiary value, it must be presented in the proper form. (See Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 263 (Immediately granting summary judgment is, in most instances, too harsh a consequence where there exist deficiencies in the separate statement. In general, the appropriate response is to give the parties an opportunity to correct the deficiencies in the separate statements).) Accordingly, the Court CONTINUES the hearing on Defendants' motion for summary judgment, with specific instructions set forth below.

III.

CONCLUSION

Defendants' Motion for Summary

Judgment is CONTINUED to October 28, 2026 at 8:30 a.m. in Dept. E.

Plaintiff is ordered to file and serve a separate statement in accordance with Code of Civil Procedure § 437c and Rule of Court 3.1350 no later than September 17, 2026.

[1] Both Plaintiff's Response and Defendants' Reply are untimely. Per Code of Civil Procedure § 437c, Plaintiff's opposition was to be filed and served "not less than 20 days preceding the noticed or continued date of hearing," or by August 7, 2026. (Code Civ. Proc. § 437c(b)(2).) And Defendants' Reply was to be filed and served "not less than 11 days" preceding the hearing date, or by August 17, 2026. (Id., § 437c(b)(4).) Although untimely, the Court

exercises its discretion to consider both Plaintiff's and Defendants' pleadings.